

the Punishment. But where there is no Punishment at all determined by the Law, there whatsoever is inflicted, hath the nature of Punishment. For he that goes about the violation of a Law, wherein no penalty is determined, expecteth an indeterminate, that is to say, an arbitrary Punishment.

Ninthly, Harme inflicted for a Fact done before there was a Law that forbad it, is not Punishment, but an act of Hostility: For before the Law, there is no transgression of the Law: But Punishment supposeth a fact judged, to have been a transgression of the Law; Therefore Harme inflicted before the Law made, is not Punishment, but an act of Hostility.

*Hurt inflicted for a fact done before the Law; no Punishment.*

Tenthly, Hurt inflicted on the Representative of the Commonwealth, is not Punishment, but an act of Hostility: Because it is of the nature of Punishment, to be inflicted by publique Authority; which is the Authority only of the Representative it self.

*The Representative of the Commonwealth Unpunishable.*

Lastly, Harme inflicted upon one that is a declared enemy, fals not under the name of Punishment: Because seeing they were either never subject to the Law, and therefore cannot transgresse it; or having been subject to it, and professing to be no longer so, by consequence deny they can transgresse it, all the Harmes that can be done them, must be taken as acts of Hostility. But in declared Hostility, all infliction of evill is lawfull. From whence it followeth, that if a subject shall by fact, or word, wittingly, and deliberately deny the authority of the Representative of the Commonwealth, (whatsoever penalty hath been formerly ordained for Treason,) he may lawfully be made to suffer whatsoever the Representative will: For in denying subjection, he denyes such Punishment as by the Law hath been ordained; and therefore suffers as an enemy of the Commonwealth; that is, according to the will of the Representative. For the Punishments set down in the Law, are to Subjects, not to Enemies; such as are they, that having been by their own act Subjects, deliberately revolting, deny the Sovereign Power.

*Hurt to Revolted Subjects is done by right of War, not by way of Punishment.*

The first, and most generall distribution of Punishments, is into *Divine*, and *Humane*. Of the former I shall have occasion, to speak, in a more convenient place hereafter.

*Humane*, are those Punishments that be inflicted by the Commandement of Man; and are either *Corporall*, or *Pecuniary*, or *Ignominy*, or *Imprisonment*, or *Exile*, or mixt of these.

*Corporall Punishment* is that, which is inflicted on the body directly; and according to the intention of him that inflicteth it: such as are stripes, or wounds, or deprivation of such pleasures of the body, as were before lawfully enjoyed.

*Punishment's Corporall.*

And of these, some be *Capitall*, some *Lesse* than *Capitall*. *Capitall*, is the Infliction of Death; and that either simply, or with torment. *Lesse* than *Capitall*, are Stripes, Wounds, Chains, and any other corporall Paine, not in its own nature mortall. For if upon the Infliction of a Punishment death follow not in the intention of the Inflicter, the Punishment is not to bee esteemed *Capitall*, though the harme prove mortall by an accident not to be fore-

*Capitall.*

seen; in which case death is not inflicted, but hastened.

*Pecuniary Punishment*, is that which consisteth not only in the deprivation of a Summe of Mony, but also of Lands, or any other goods which are usually bought and sold for mony. And in case the Law, that ordaineth such a punishment, be made with design to gather mony, from such as shall transgresse the same, it is not properly a Punishment, but the Price of priviledge, and exemption from the Law, which doth not absolutely forbid the fact, but only to those that are not able to pay the mony: except where the Law is Naturall, or part of Religion; for in that case it is not an exemption from the Law, but a transgression of it. As where a Law exacteth a Pecuniary mulct, of them that take the name of God in vaine, the payment of the mulct, is not the price of a dispensation to sweare, but the Punishment of the transgression of a Law undispensable. In like manner if the Law impose a Summe of Mony to be payd, to him that has been Injured; this is but a satisfaction for the hurt done him; and extinguisheth the accusation of the party injured, not the crime of the offender.

*Ignominy.*

*Ignominy*, is the infliction of such Evill, as is made Dishonorable; or the deprivation of such Good, as is made Honourable by the Common-wealth. For there be some things Honourable by Nature; as the effects of Courage, Magnamity, Strength, Wisdome, and other abilities of body and mind: Others made Honourable by the Common-wealth; as Badges, Titles, Offices, or any other singular marke of the Sovereigns favour. The former, (though they may faile by nature, or accident,) cannot be taken away by a Law; and therefore the losse of them is not Punishment. But the later, may be taken away by the publique authority that made them Honourable, and are properly Punishments: Such are degrading men condemned, of their Badges, Titles, and Offices; or declaring them incapable of the like in time to come.

*Imprisonment.*

*Imprisonment*, is when a man is by publique Authority deprived of liberty; and may happen from two divers ends; whereof one is the safe custody of a man accused; the other is the inflicting of paine on a man condemned. The former is not Punishment; because no man is supposed to be Punisht, before he be Judicially heard, and declared guilty. And therefore whatsoever hurt a man is made to suffer by bonds, or restraint, before his cause be heard, over and above that which is necessary to assure his custody, is against the Law of Nature. But the later is Punishment, because Evill, and inflicted by publique Authority, for somewhat that has by the same Authority been Judged a Transgression of the Law. Under this word Imprisonment, I comprehend all restraint of motion, caused by an externall obstacle, be it a House, which is called by the general name of a Prison; or an Iland, as when men are said to be confined to it; or a place where men are set to worke, as in old time men have been condemned to Quarries, and in these times to Gallies; or be it a Chaine, or any other such impediment.

*Exile.*

*Exile*, (Banishment) is when a man is for a crime, condemned

demned to depart out of the dominion of the Common-wealth, or out of a certaine part thereof; and during a prefixed time, or for ever, not to return into it: and seemeth not in its own nature, without other circumstances, to be a Punishment; but rather an escape, or a publique commandement to avoid Punishment by flight. And *Cicero* sayes, there was never any such Punishment ordained in the City of *Rome*; but calls it a refuge of men in danger. For if a man banished, be neverthelesse permitted to enjoy his Goods, and the Revenue of his Lands, the meer change of ayre is no Punishment; nor does it tend to that benefit of the Common-wealth, for which all Punishments are ordained, (that is to say, to the forming of mens wils to the observation of the Law;) but many times to the dammage of the Common-wealth. For a Banished man, is a lawfull enemy of the Common-wealth that banished him, as being no more a Member of the same. But if he be withall deprived of his Lands, or Goods, then the Punishment lyeth not in the Exile, but is to be reckoned amongst Punishments Pecuniary.

All Punishments of Innocent subjects, be they great or little, are against the Law of Nature: For Punishment is only for Transgression of the Law, and therefore there can be no Punishment of the Innocent. It is therefore a violation, First, of that Law of Nature, which forbiddeth all men, in their Revenges, to look at any thing but some future good: For there can arrive no good to the Common-wealth, by Punishing the Innocent. Secondly, of that, which forbiddeth Ingratitude: For seeing all Sovereign Power, is originally given by the consent of every one of the Subjects, to the end they should as long as they are obedient, be protected thereby; the Punishment of the Innocent, is a rendring of Evill for Good. And thirdly, of the Law that commandeth Equity; that is to say, an equall distribution of Justice; which in Punishing the Innocent is not observed.

But the Infliction of what evill soever, on an Innocent man, that is not a Subject, if it be for the benefit of the Common-wealth, and without violation of any former Covenant, is no breach of the Law of Nature. For all men that are not Subjects, are either Enemies, or else they have ceased from being so, by some precedent covenants. But against Enemies, whom the Common-wealth judgeth capable to do them hurt, it is lawfull by the originall Right of Nature to make warre; wherein the Sword judgeth not, nor doth the Victor make distinction of Nocent, and Innocent, as to the time past; nor has other respect of mercy, than as it conduceth to the good of his own People. And upon this ground it is, that also in Subjects, who deliberately deny the Authority of the Common-wealth established, the vengeance is lawfully extended, not onely to the Fathers, but also to the third and fourth generation not yet in being, and consequently innocent of the fact, for which they are afflicted: because the nature of this offence, consisteth in the renouncing of subjection; which is a relapse into the condition of warre, commonly called Rebellion; and they that so offend, suffer not as Subjects,

*The Punishment of Innocent Subjects is contrary to the Law of Nature.*

*But the Harme done to Innocents in War, not so:*

*Nor that which is done to declared Rebels.*

but as Enemies. For *Rebellion*, is but warre renewed.

*Reward, is either Salary, or Grace.*

REWARD, is either of *Gift*, or by *Contract*. When by *Contract*, it is called *Salary*, and *Wages*; which is benefit due for service performed, or promised. When of *Gift*, it is benefit proceeding from the *grace* of them that bestow it, to encourage, or enable men to do them service. And therefore when the Sovereign of a Common wealth appointeth a Salary to any publique Office, he that receiveth it, is bound in Justice to performe his office; otherwise, he is bound onely in honour, to acknowledgement, and an endeavour of requitall. For though men have no lawfull remedy, when they be commanded to quit their private businesse, to serve the publique, without Reward, or Salary; yet they are not bound thereto, by the Law of Nature, nor by the Institution of the Commonwealth, unlesse the service cannot otherwise be done; because it is supposed the Sovereign may make use of all their means, insomuch as the most common Souldier, may demand the wages of his warfare, as a debt.

*Benefits bestowed for fear, are not Rewards.*

The benefit which a Sovereign bestoweth on a Subject, for fear of some power, and ability he hath to do hurt to, the Commonwealth, are not properly Rewards; for they are not Salaryes; because there is in this case no contract supposed, every man being obliged already not to do the Commonwealth disservice: nor are they Graces; because they be extorted by fear, which ought not to be incident to the Sovereign Power: but are rather Sacrifices, which the Sovereign (considered in his naturall person, and not in the person of the Commonwealth) makes, for the appeasing the discontent of him he thinks more potent than himselfe; and encourage not to obedience, but on the contrary, to the continuance, and increasing of further extortion.

*Salaries Certain and Casuall.*

And whereas some Salaries are certain, and proceed from the publique Treasure; and others uncertain, and casuall, proceeding from the execution of the Office for which the Salary is ordained; the latter is in some cases hurtfull to the Commonwealth; as in the case of Judicature. For where the benefit of the Judges, and Ministers of a Court of Justice, ariseth for the multitude of Causes that are brought to their cognisance, there must needs follow two Inconveniences: One, is the nourishing of sutes; for the more sutes, the greater benefit: and another that depends on that, which is contention about Jurisdiction; each Court drawing to it selfe, as many Causes as it can. But in offices of Execution there are not those Inconveniences; because their employment cannot be encreased by any endeavour of their own. And thus much shall suffice for the nature of Punishment, and Reward; which are, as it were, the Nerves and Tendons, that move the limbes and joynts of a Commonwealth.

Hitherto I have set forth the nature of Man; (whose Pride and other Passions have compelled him to submit himselfe to Government;) together with the great power of his Governour, whom I compared to *Leviathan*, taking that comparison out of the two last verses of the one and fortieth of *Iob*; where God having set forth the great power of *Leviathan*, calleth him King of the Proud. *There*